

		reasonable hourly rate in Orange County and their experience. Otherwise, the Court finds that Plaintiffs have carried their burden to establish that the attorney fees sought are reasonable. For the same reasons discussed above, the Court reduces the costs by \$483.20. The Court is not persuaded the court reporter fees should be stricken and is also not persuaded that the discovery motion costs were unnecessary since the motions were filed before the motion to compel arbitration was filed and before the court ordered a stay. Given the above, the Court will award \$1,536.52 in costs Given the above, the <u>motion for attorney fees</u> is GRANTED in the amount of \$10,609. The motion is also GRANTED as to Plaintiff's request for \$1,536.52 in costs. The motion is DENIED as to the <u>other fees requested</u>. Plaintiff's request for <u>judicial notice</u> of other court orders on motions for attorney fees is DENIED. Such orders are not binding on the Court. A court may deny a request for judicial notice on the ground that the material is not relevant to the determination of the issues. (<i>State Compensation Ins. Fund v. ReadyLink Healthcare, Inc.</i> (2020) 50 Cal.App.5th 422, 442.) Plaintiff to give notice.
9.	30-2024-01373470 Rojas vs. Pickens	1. Motion for Order to Stay Proceedings Plaintiffs Larry Rojas and Yesenia Diaz ("Plaintiffs") move for an order imposing a stay of all proceedings in this action pending resolution of the related criminal matter against defendant Matthew Pickens. " 'The Constitution does not require a stay of civil proceedings pending the outcome of criminal proceedings. [Citation.] A court, however, has the discretion to stay civil proceedings, postpone civil discovery, or impose protective orders and conditions " ' "when the interests of justice seem [] to require such action, sometimes at the request of the prosecution, . . . sometimes at the request of the defense[.]" ' ' ' [Citations.]" (<i>Avant! Corp. v. Superior Court</i> (2000) 79 Cal.App.4th 876, 886.) The factors to be considered in deciding whether to impose a stay of civil proceedings in the face of parallel criminal proceedings are: "(1) the interest of the plaintiffs in proceeding expeditiously with this litigation or any particular aspect of it, and the potential prejudice to plaintiffs of a delay; (2) the burden which any particular aspect of the proceedings may impose on defendants; (3) the convenience of the court in the management of its cases, and the efficient use of judicial resources; (4) the interests of persons not parties to the civil litigation; and (5) the interest of the public in the pending civil and criminal litigation." (<i>Avant!</i>, 79 Cal.App.4th at p. 887, citing <i>Keating v. Office of Thrift Supervision</i> (9th Cir. 1995) 45 F.3d 322, 324-325.) Plaintiffs argue that a stay pending resolution of the criminal action against Matthew Pickens is warranted because Matthew Pickens's Fifth Amendment rights are implicated here and a stay would avoid numerous disputes related to his potential invocation of the privilege. Plaintiffs contend that the <i>Keating</i> factors favor a stay, a stay will not burden defendants, and a stay would further the convenience of the Court because if the criminal case against Matthew Pickens results in a conviction, liability against him in this civil action need not again be proven. Here, Plaintiffs allege that Matthew Pickens caused Larry Rojas to be shot by a firearm with the intent to harm him. There is a parallel criminal case pending against Matthew Pickens related to

the incident underlying Plaintiffs' action. This civil action clearly implicates Matthew Pickens's Fifth Amendment privilege while the criminal case remains pending.

The Court finds that the *Keating* factors favor a stay here. The first factor relates to Plaintiffs' interests in proceeding with the litigation expeditiously, but it is Plaintiffs requesting the stay in this case. Because Plaintiffs have no objection to the delay that will be caused by a stay, the first factor weighs in favor of a stay.

The second factor relates to the burden any particular aspect of the proceedings would place on Defendants. Defendants Mark and Annmarie Pickens argue that a stay would prejudice their interest in a timely resolution of this action because the requested stay is open-ended and for an indeterminate period. However, beyond pointing to the fact that it is impossible to predict when the criminal case will come to a close so that the civil action may resume, Mark and Annmarie point to no real prejudice they might suffer if a stay is imposed. Thus, this second factor also weighs in favor of a stay.

The third factor, convenience of the Court and efficient use of judicial resources, supports a stay, as a stay until the criminal case is resolved would avoid further disputes regarding the Fifth Amendment privilege and whether have full access to all documents, information, and testimony necessary to their advancement of this action.

The remaining factors are neutral.

Mark and Annmarie argue that a stay against them, when they do not face any criminal prosecution, is unnecessary. However, the claims against them by Plaintiffs are that they negligently allowed Matthew Pickens, their son, to have access to the firearm used in the underlying incident. These claims are intertwined with the criminal and civil claims against Matthew Pickens. Further, as Plaintiffs have shown, Plaintiffs have been denied access to documents and information regarding the weapon used to shoot Larry Rojas and the weapons seized from Mark and Annmarie's home because the criminal investigation/prosecution of Matthew Pickens remains pending. These documents and information go directly to the issue of Mark and Annmarie's liability. Under these circumstances, a stay is warranted.

In light of the above, **Motion for Stay is GRANTED**. Accordingly, the pending hearings in this matter are ordered **VACATED**.

A **Status Conference re: Stay** is set for **November 5, 2026 at 9:00 a.m. in C34**.

Moving party to give notice.